

Sri Konda Laxman Telangana State Horticultural University Act, 2007

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State of Telangana - Act

Sri Konda Laxman Telangana State Horticultural University Act, 2007

TELENGANA

India

Sri Konda Laxman Telangana State Horticultural University Act, 2007

Act 30 of 2007

Published on 6 December 2007

Commenced on 6 December 2007

[This is the version of this document from 6 December 2007.]

[Note: The original publication document is not available and this content could not be verified.]

Sri Konda Laxman Telangana State Horticultural University Act, 2007

(Act

No. 30 of 2007

)

The Andhra Pradesh Horticultural University Act, 2007 received the assent of the Governor on the 6th December, 2007. The said Act in force in the combined State, as on 02.06.2014, has been adapted to the State of Telangana, under section 101 of the Andhra Pradesh Reorganisation Act, 2014 (Central Act 6 of 2014) vide. the Notification issued in G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.

Chapter - I Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called [Sri Konda Laxman Telangana State Horticultural University Act, 2007.]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

(2)

It extends to the whole of the State of [Telangana.]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

(3)

It shall be deemed to have come into force on and from the 26th June, 2007.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(1)

"Academic Council" means the Academic Council of the University;

(2)

"Act" means [Sri Konda Laxman Telangana State Horticultural University Act, 2007]

[Substituted by G.O.Ms. No. 31, Agriculture and Co-operation (Horti & Seri) Department, dated 22.12.2014]

;

(3)

"Associate Dean" means the Head of the College of the University;

(4)

"Associate Director" means the Associate Director of Research of the concerned Zone/Region or in the Headquarters of the University;

(5)

"Authority" means any authority of the University as specified in section 9;

(6)

"Board" means the Board of Management of the University;

(7)

"College" means a constituent college of the University under its direct control and management whether located at the Headquarter Campus or elsewhere;

(8)

"Chancellor" means the Chancellor of the University;

(9)

"Comptroller" means the Comptroller of the University;

(10)

"Controller of Examinations" means the Controller of Examinations of the University;

(11)

"Dean" means the Dean of the subject matter of the Faculty, Faculty of Post Graduate Studies and Students Affairs;

(12)

"Director" means the Director of Research or the Director of Extension or the Director of Industrial and International Programmes;

(13)

"Estate Officer" means the Estate Officer of the University;

(14)

"Extension" means assisting in process of Transfer of Technology through dissemination of knowledge in collaboration with the Department of Horticulture;

(15)

"Extension Centre / Unit" means a constituent Centre for transfer of technology of the University;

(16)

"Faculty" means the Faculty in the University as specified in section 16;

(17)

"Government" means the State Government;

(18)

"Governor" means the Governor of the State of [Telangana;]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

(19)

"Horticulture" means Agriculture including the basic and applied sciences of,-

(a)

fruits, vegetables, floriculture, spices and condiments;

(b)

Plantation crops, hops, medicinal and aromatic plants;

(c)

forestry includes silviculture, plant breeding, farm forestry, social forestry, conservation of ecology of the biosphere, wild life and their products;

(d)

post-harvest Technology including Processing and Marketing;

(e)

ornamental horticulture and landscaping;

(f)

Sericulture;

(g)

Apiculture;

(h)

Crop improvement, Production and Management;

(i)

Soil and Water Management;

(j)

Horticultural/Agricultural Engineering and Technology;

(k)

Basic Sciences and Humanities in relation to Horticulture and Agriculture;

(l)

Mushroom cultivation;

(m)

Subjects pertaining to Horticultural/Agricultural Technology including bio-technology and rural development;

(20)

"Hostel" means a place of residence for students of the University maintained or recognized by the University either as a part of or separate from the University;

(21)

"Officer" means an officer of the University as specified under section 24 or other person(s) in the employment of the University declared as Officer by the Statutes;

(22)

"Prescribed" means as prescribed in the Statutes or Regulations, as the case may be, of the University;

(23)

"Registrar" means the Registrar of the University;

(24)

"Research" means generation of Technologies for improving production of Horticulture crops;

(25)

"Research and Extension Council" means the Research and Extension Council of the University;

(26)

"Research Station" means a constituent research and experimental station of the University;

(27)

"Statutes" and "Regulations" respectively mean the Statutes and Regulations of the Horticultural University made under this Act;

(28)

"Student" means the person enrolled in the University for taking a course of study for a degree, diploma or other academic distinction duly instituted;

(29)

"Teacher / Scientist" means a person not below the rank of an Assistant Professor appointed or recognized by the University for the purpose of imparting instruction and/or conducting and guiding research and/or extension programmes and may include any other person who may be declared by the Statutes to be a teacher;

(30)

"Teaching" means the Training human resource needs for the development of the State of [Telangana]
[Substituted by G.O.Ms.No. 31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]
;

(31)

"University" means [Sri Konda Laxman Telangana State Horticultural University constituted under section 3;]
[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

(32)

"University Head" means the Head of the Department/Division of the University;

(33)

"University Librarian" means the Librarian of the University;

(34)

"Vice-Chancellor" means the Vice-Chancellor of the University;

(35)

"Zonal Station/Regional Station" means a Research Station of the University for a given Zone/Region.

Chapter - II The University

3.

Establishment and incorporation of the University.

(1)

There shall be established in and for the State of [Telangana,]
[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]
a University by the name of [Sri Konda Laxman Telangana]
[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]
State Horticultural University.

(2)

The University shall consist of a Chancellor, a Vice-Chancellor, a Board of Management, an Academic Council, a Research and Extension Council, Board of Faculties and other authorities as set forth in the Act or as provided in the Statutes.

(3)

The University shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by the said name.

(4)

(a)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all processes in such suits and proceedings shall be issued to, and served on him;

(b)

In case of emergency or otherwise, the Vice- Chancellor may specially nominate any other officer in this behalf.

(5)

The University shall be competent to acquire and hold property, both movable and immovable, to lease, sell or otherwise transfer any movable or immovable property which may have become vested in or have been acquired by it for the purpose of the University, and to borrow money from the Central Government, State Government or any other approved sources and do all other things necessary for the purpose of this Act.

(6)

[The Head Quarters of the University shall be in the existing campus at Rajendranagar, Hyderabad.]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

4.

Territorial Jurisdiction.

(1)

With respect to teaching at the University or College level, research and extension programmes in the field of horticulture as broadly defined in this Act, the territorial jurisdiction and responsibility for this University shall extend to the entire State of [Telangana.]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

(2)

The University may assume responsibility for the maintenance of Horticultural education training centers, research and experimental stations, training of field extension workers and for the establishment, development and operation of such centers as may be required in various parts of the State.

(3)

All colleges, research and experimental stations or other institutions coming under the jurisdiction and authority of this University shall come in as constituent units of the University under the full management and control of the University. No unit shall be recognized as an affiliated unit.

5.

Objects of the University.

- The following are the objects of the University, namely:-

(1)

to make provision for imparting education in different branches of study of Horticulture and other allied branches of learning and scholarship;

(2)

to further the advancement of learning and conduct research, particularly in horticulture and other allied sciences;

(3)

to undertake the extension of such sciences/ technologies specially for the rural people of the State;

(4)

to have collaboration in research projects having multi-disciplinary approach and academic programmes with other Universities or reputed institutes;

(5)

such other purpose as the University may, from time to time, determine.

6.

Admission to the University.

(1)

The University shall, subject to the provisions of this Act and the Statutes, be open to all persons, provided that nothing in this section shall require the University to admit to any course of study any person who does not meet the prescribed academic standards for admission or to retain on the rolls of the University persons whose academic records are below the minimum standard required for the award of a degree or whose personal conduct is such as to be inimical to the purpose of the University or to the appropriate rights and privileges of other students and staff:

Provided that nothing in this section shall be deemed to require the University to admit to any course of study a large number of students than prescribed and can be accommodated in the available faculties of the University or of any particular college or Department as determined by the Academic Council.

(2)

Subject to the provisions under sub-section (1), the University shall reserve seats for socially and educationally Backward Classes, Scheduled Castes, Scheduled Tribes and other categories specified by the Government or Academic Council or candidates from other States in India/abroad, provided that no such person shall be entitled to be admitted to the University unless he or she meets the standards laid down in respect of such candidates.

7.

Powers and functions of the University.

- The University shall have the following powers and functions,-

(1)

- to provide for instruction in Horticulture/Agriculture and other allied branches of learning as the University may deem fit;
- (2)
- to provide for conduct of research in "Horticulture" and allied branches of learning;
- (3)
- to provide for dissemination of the findings of research and technical information through an extension programme;
- (4)
- to institute courses of study and hold examinations for and confer degrees, diplomas and other academic distinctions on persons who have pursued an approved course of study in the University or including part courses and/or research carried out in any other University or recognizing institutions, as may be prescribed, for the purpose;
- (5)
- to confer honorary degrees and other distinctions, as may be prescribed;
- (6)
- to provide such lectures and instructions for and to grant such diplomas to field workers and other persons, as the University may determine;
- (7)
- to collaborate with other Universities and institutions in such manner and for such purpose, as the University may determine;
- (8)
- to establish and maintain colleges, schools, centers, divisions, departments, institutions relating to Horticulture/Agriculture;
- (9)
- to establish and maintain laboratories, libraries, research stations, institutions, museums etc., for teaching, research and extension;
- (10)
- to create teaching, research and extension posts and to appoint persons to such posts;
- (11)
- to create administrative and other posts and to appoint persons to such posts;
- (12)
- to institute and award fellowships, scholarships stipends, endowments and prizes in accordance with the Statutes;
- (13)
- to institute and maintain residential accommodation for students and staff of the University;
- (14)
- to fix, demand and receive such fees and other charges, as may be prescribed;
- (15)
- to supervise and control the residence, regulate the conduct and discipline of the students of the University and to make arrangements for promoting their health and welfare;
- (16)
- to acquire, hold and dispose of property, and to contract and to do all other things necessary for, or incidental to the purposes of the University;
- (17)
- to take over and maintain colleges, experimental centres and extension centres relating to Horticulture/ Agriculture and hostels thereof;
- (18)
- to borrow money from the Government of India, any State Government or any other agency;
- (19)
- to do all such acts and things, whether incidental to the powers aforesaid or not, as may be required, in order to further the objectives of the University.

8.

Visitation and Inspection.

(1)

The Chancellor shall have the right to cause an inspection to be made, by such person or authority, as he may direct, of

the affairs and properties of the University or any college or institution maintained by the University, and to cause an inquiry to be made in respect of any matter connected therewith.

(2)

Before causing such an inspection or inquiry, intimation thereof shall be given to the University, which shall be entitled to have its nominee or nominees at such inspection or inquiry and to make representation in regard thereto.

(3)

The Chancellor shall forward to the Board a copy of the report of inspection or inquiry for expressing its views and on receipt thereof, the Chancellor may tender such advice or give such direction as the Chancellor may consider necessary and fix a time limit for action to be taken by the Board in that regard. The Board shall, within the time so fixed, take necessary action and report the fact to the Chancellor.

Chapter - III Authorities of the University

9.

Authorities of the University.

- The following shall be the authorities of the University, namely:-

(1)

The Board of Management;

(2)

The Academic Council;

(3)

The Board of Faculties including Post-Graduate studies;

(4)

The Research and Extension Council;

(5)

Such other bodies as may be prescribed.

10.

Board of Management and its Constitution.

(1)

The Chancellor shall constitute the Board of Management.

(2)

The Board of Management shall consist of the following members:

Ex-Officio Members

(i)

The Vice-Chancellor;

(ii)

the Vice-Chancellor of [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

;

(iii)

[The Vice-Chancellor of [Sri P.V. Narsimha Rao Telangana Veterinary University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

;

(iv)

The Secretary to Government, looking after Horticulture;

(v)

The Secretary to Government, Finance Department;

(vi)

The Commissioner/Director of Horticulture;

Other Members

(vii)

one distinguished Scientist from the field of horticulture;

(viii)

Four persons nominated from amongst the progressive farmers of horticulture/agriculture of whom one shall be a woman;

(ix)

two persons nominated from among the Horti-industrialists and other entrepreneurs including self employed graduates;

(x)

one representative from the Indian Council of Agricultural Research;

(xi)

Four persons from among the Members of the State Legislature and the Members of Parliament elected from the State of [Telangana;]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

(xii)

one Director/Dean;

(xiii)

Three Professors of the University other than Dean/Director;

(xiv)

One Person nominated by the Chancellor from among the members of State Chamber of Panchayat Raj.

(3)

The Vice-Chancellor shall be the Ex-officio Chairman and the Registrar Ex-officio Non-Member Secretary of the Board.

(4)

The term of the office of the Members of the Board other than the Ex-officio Members shall be three years:

Provided that no member of the Board who is nominated shall continue to be a Member of the Board on his ceasing to hold the office by virtue of which he has been nominated as a Member of the Board:

Provided further that even if some of the members are nominated at different times to the Board under items (vii) to (xiii) of sub-section (2), the term of three years in their case shall be reckoned from the date on which the notification constituting the Board was first issued.

(5)

When a vacancy occurs in the office of any member by reason of death, resignation or any cause other than the expiry of the term, the vacancy shall be filled in accordance with the provisions of this section and the person who fills such vacancy shall hold office for the residue of the term for which the person whose place he fills would have been a member.

(6)

Six Members of the Board including the presiding member shall form the quorum at any meeting of the Board:

Provided that if a meeting of the Board is adjourned for want of quorum, no quorum shall be necessary at the next meeting called for transacting the same business.

(7)

The Members of the Board other than the Officers of the University shall not be entitled to any remuneration for the performance of their functions under this Act except such daily and travelling allowances as may be prescribed.

(8)

No officer or other employee of the University shall be eligible to be a Member of the Board under clauses (vii) to (xi) of sub-section (2).

11.

Powers and functions of the Board.

(1)

Subject to the provisions of this Act the Board shall be the Chief Executive body of the University and shall manage and supervise the properties and activities of the University and shall be responsible for the conduct of all administrative affairs of the University, not otherwise provided for, in this Act.

(2)

Without prejudice to the generality of the foregoing powers, the Board shall exercise and perform the following powers and functions:-

(i)

to consider and approve the financial requirements, estimates and budget of the University;

- (ii)
to acquire any property for the University and hold or dispose of its properties;
- (iii)
to accept or transfer any property on behalf of the University;
- (iv)
to provide for the administration of any funds placed at the disposal of the University for the purposes intended;
- (v)
to borrow money for capital investments, with prior approval of the State Government and make suitable arrangements for its repayment;
- (vi)
to accept on behalf of the University trusts, bequests and donations;
- (vii)
to consider and approve the recommendations of the Academic Council, Research and Extension Council wherever required;
- (viii)
to direct the form and use of the common seal of the University;
- (ix)
to consider and approve the establishment of new departments, divisions, centres or Research Stations/Sub- Stations or Extension centres or abolition of any one thereof or otherwise, reconstitution of departments, divisions Research Stations or Centres on the recommendation of the Academic Council or Research and Extension Council, as the case may be;
- (x)
to consider and approve establishment of new Colleges, faculties, amalgamation of two or more Colleges or faculties into a single College or faculty or abolition of a college or faculty, reconstitution of any of the existing faculties on the recommendation of the Academic Council;
- (xi)
to appoint teachers of the university and such other employees of the University as may be prescribed on the recommendation of the Selection Committee: Provided that the Board may invite any person of high academic distinction and professional attainments to accept a post of Professor in the University and appoint him to that post;
- (xii)
to determine and regulate all policies relating to the affairs of the University in accordance with this Act;
- (xiii)
to appoint such Committees either standing or temporary as the Board may consider necessary.

(3)
The Board shall meet at such time and place as it deems necessary but it shall hold a meeting at least once in every two months and not less than half of the number of its meetings in a year shall be held at the headquarters of the University.

(4)
The Board may, for purpose of consultation invite any person having practical experience or special knowledge of any subject under its consideration to attend its meeting. Such person shall have right to speak in, and otherwise to take part in the proceedings of such meeting, but shall not, by virtue of this sub-section, be entitled to vote in any such meeting. A person attending such meeting shall be entitled to such allowances as may be prescribed.

12.

Academic Council.

(1)
The Academic Council shall consist of the following members, namely:-

(i)
The Vice-Chancellor,

(ii)
The Vice-Chancellor, [Professor Jayashankar Telangana State Agricultural University];
[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

(iii)

[The Vice-Chancellor of [Sri P.V.Narsimha Rao Telangana Veterinary University
[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]
];]

(iv)

The Deans of the faculties;

(v)

The Directors;

(vi)

The Dean of Students Affairs;

(vii)

The Controller of Examinations;

(viii)

The University Librarian;

(ix)

The University Heads of Departments and Heads of Departments of Colleges;

(x)

The Associate Deans of Colleges;

(xi)

The Associate Directors of Research of the Regions/Zones;

(xii)

Three Principal Scientists (Crop) to be nominated by the Vice-Chancellor;

(xiii)

Two Members of the Board nominated by the Board;

(xiv)

Two eminent educationists from outside the University in the field of Horticulture nominated by the Vice-Chancellor;

(xv)

One nominee of the Indian Council of Agriculture Research;

(xvi)

Two Associate Professors and two Assistant Professors from the Faculties nominated by the Vice-Chancellor;

(xvii)

Two Principals of Polytechnics nominated by Vice-Chancellor;

(xviii)

The Registrar, Ex-officio Member-Secretary.

(2)

Academic Council may co-opt as members not more than two persons for such period and in such manner, as may be prescribed, so as to secure adequate representation of different sectors of horticulture/agriculture and allied fields.

(3)

Normally the Academic Council shall meet once in every six months on such dates as may be fixed by the Vice-Chancellor. However, special meetings of the Academic Council can be called by the Vice-Chancellor.

(4)

One third of the members of the Academic Council shall form quorum at a meeting of the Council:

Provided that if a meeting of the Council is adjourned for want of quorum, no quorum shall be necessary at the next meeting for the transaction of the same business.

13.

Powers and functions of the Academic Council.

(1)

The Academic Council shall, subject to provisions of this Act and the Statutes, have the powers, by regulations, of prescribing all courses of study and determining curricula, and shall have general control on teaching and other educational programmes within the University, and shall be responsible for the maintenance of standards thereof.

(2)

It shall have power to make regulations consistent with this Act and the Statutes relating to all academic matters subject

to its control and to amend or repeal such regulations.

(3)

In particular, and without prejudice to the generality of the foregoing power, the Academic Council shall have power,-

(i)

to advise the Board and Vice-Chancellor on all academic matters including the control and management of libraries;

(ii)

to make recommendations for the institution of Professorships, Associate Professorships, Assistant Professorships, and other teaching posts including posts in research and extension and in regard to the duties thereof;

(iii)

to make recommendations for the constitution or reconstitution or abolition of departments/faculties of teaching;

(iv)

to make regulations regarding the admission of students to the University and determine the number of students to be admitted;

(v)

to make regulations relating to the courses of study leading to degrees, diplomas and certificates;

(vi)

to make regulations relating to the conduct of examinations and to maintain and improve standards of education;

(vii)

to make recommendations to the Board regarding conferment of honorary degrees and other distinctions;

(viii)

to prescribe qualifications for teachers in the University;

(ix)

to exercise such other powers and perform such other functions as may be prescribed.

14.

Research and Extension Council.

(1)

There shall be a Research and Extension Council consisting of the following members, namely:-

(i)

The Vice-Chancellor;

(ii)

The Director/Commissioner of Horticulture or his nominee not below the rank of Joint Director;

(iii)

The Director/Commissioner of Agriculture or his nominee not below the rank of Joint Director;

(iv)

The Director of Women Development & Child Welfare or his nominee not below the rank of Joint Director;

(v)

The Director/Commissioner of Sericulture or his nominee not below the rank of Joint Director;

(vi)

The Principal Chief Conservator of Forests or his nominee not below the rank of Chief Conservator of Forests;

(vii)

Two members of the Board nominated by the Board;

(viii)

The Director of Research;

(ix)

The Director of Extension;

(x)

All Deans of the Faculties;

(xi)

Dean of Students Affairs;

(xii)

The Principal, Extension Education Institute, [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]
, Hyderabad;

(xiii)

All Associate Directors of Research;

(xiv)

All Associate Deans of the Colleges;

(xv)

All Heads of Departments of the University;

(xvi)

Principal Scientists (Crop);

(xvii)

All Heads of Krishi Vignan Kendras and District Extension Units;

(xviii)

Three Officers not below the rank of the Deputy Director of Horticulture nominated by the Director/ Commissioner of Horticulture;

(xix)

Research and Extension Council may co-opt as members not more than four persons who are specialized in research for such period and in such manner as may be prescribed, so as to secure adequate representation of different sectors of horticulture/agriculture and allied fields. Such members shall be two from [Telangana]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

and two outside the State;

(xx)

Ten progressive farmers of which three shall be woman, who are prominent in horticulture/agriculture and allied branches to be nominated by the Vice-Chancellor for their specialized knowledge and experience;

(xxi)

Two persons nominated by the Vice-Chancellor representing different horticulture based industries;

(xxii)

Representatives from the under mentioned organisations, not exceeding seven:

(a)

Agriculture Chemicals;

(b)

The [Telangana]

[Substituted by G.O.Ms. No. 31, Agriculture and Co-operation (Horti & Seri) Department, dated 22.12.2014.]

State Seed Development Corporation Limited/ National Seed Corporation/ Seed Industry/ NABARD/ Commercial banks;

(c)

Indian Nursery Association;

(d)

Micro Irrigation Industries;

(e)

Food processing Industry;

(f)

The [Telangana]

[Substituted by G.O.Ms. No. 31, Agriculture and Co-operation (Horti & Seri) Department, dated 22.12.2014.]

State Agro-industries Development Corporation Limited;

(g)

Non-Governmental Organizations;

(h)

Exporters, Agriculture products export development agency;

(i)

Marketing, Food packing Industry;

(xxiii)

The Vice-chancellor may, for purpose of consultation, invite any two Scientists and/or two extension experts as per the need of the agenda to attend the meeting.

(2)

The Vice-Chancellor shall be Ex-officio Chairman and the Director of Research, Ex-officio Member-Secretary.

(3)

The term of nominated/co-opted members shall be two years.

(4)

The Research and Extension Council shall meet at least once in a year.

15.

Powers and Functions of the Research and Extension Council.

(1)

The Research and Extension Council shall subject to the provisions of this Act and Statutes, have the powers, to make recommendations of matters relating to research and extension programmes.

(2)

In particular and without prejudice to the generality of the foregoing powers, the Research and Extension Council shall have the following powers:

(a)

to advise the Board and the Vice-Chancellor on all research and extension matters, including control and management of research stations and extension units/ programmes;

(b)

to make recommendations for the institution of advanced centres of excellence, research fellowships and other research and extension posts;

(c)

to make recommendations for the establishment, organisation and reorganisation of research stations, and extension units, programmes and research specialization;

(d)

to assess the physical, fiscal and administrative facilities required for implementing research and extension projects/ programmes;

(e)

to orient and disseminate research to meet farmers' needs through kisan melas and other programmes;

(f)

to develop farmers' education and training and advisory services;

(g)

to identify and resolve field problems and arrange for transfer and transmission of information;

(h)

to coordinate extension activities for improvement of Horticulture and allied branches and for the development of rural communities;

(i)

to integrate research, extension and teaching and ensure participation of teachers in all programmes;

(j)

to recommend names of outstanding farmers and others contributing the development of horticulture for conferment of distinctions and awarding prizes;

(k)

any other matter pertaining to research and extension programmes including the collaborative arrangements which may be referred to by the Vice- Chancellor or the Board or any other authority of the University.

16.

Faculties.

(1)

The University shall have the Faculties, of Horticulture, Post-graduate studies and such other Faculties, as may be prescribed.

(2)

Each Faculty shall comprise such departments with such assignment of subjects of study, as may be approved.

(3)

There shall be a Board for each Faculty, the constitution and powers of which shall be prescribed.

(4)

There shall be a Dean for each Faculty who shall be appointed in such manner and for such period, as may be prescribed.

(5)

Each department shall have a University Head whose appointment, powers and duties shall be prescribed, and who shall be responsible to the Dean for the proper organization and working of the department.

17.

Powers and Functions of the Board of Faculties.

- The Boards of Faculties shall have the following powers, namely:-

(a)

to make recommendation to the Academic Council regarding admission of students to the University;

(b)

to draw the curricula and courses and recommend to the Academic Council;

(c)

to recommend to the Academic Council conditions under which students shall be admitted to the degrees, diplomas and certificates;

(d)

to recommend to the Academic Council the establishment, amalgamation, sub-division and abolition of departments;

(e)

to recommend to the Academic Council for the recognition of the degrees, diplomas and other certificates of other Universities;

(f)

such other powers as may be prescribed.

18.

Constitution of Committees.

- Every authority shall have the power to appoint committees which may, unless otherwise provided in this Act, consist of such members of the authority and other persons as it may deem fit.

19.

Filling of Casual Vacancies.

- Any casual vacancy among the members, other than ex-officio members, of any Authority shall be filled, as soon as conveniently may be, by the person or Authority who appointed, elected, nominated or co-opted the member whose place has become vacant and the person appointed, elected, nominated or co-opted to a casual vacancy shall be a member of such Authority for the residue of term for which the person whose place he fills would have been a member.

20.

Removal from membership of an authority.

(1)

The Board may remove any person from membership of any authority or body of the University on the ground that such person have been convicted of any offence involving moral turpitude or conduct not befitting the office held by the concerned member:

Provided that no such order shall be made against any person without giving reasonable opportunity of being heard.

(2)

Any member, other than ex-officio member, of any authority or body of the University, may resign his office by a letter addressed to the Vice-Chancellor and such resignation shall take effect from the date on which the same is accepted by the authority competent to fill the vacancy or on the expiry of three months from the date of its receipt by the Vice-Chancellor, which is earlier.

21.

Decision on question as to validity of the act or proceeding.

- Where any question arises whether any act or proceeding of an Authority including the Board, is consistent with this

Act and the Statutes, it shall be referred to the Chancellor whose decision thereon shall be final.

22.

Decision on question as to validity of membership.

- If any question arises as to whether any person has been duly appointed or is entitled to be a member of any authority or other body of the University the matter shall be referred to the Chancellor whose decision thereon shall be final:

Provided that before taking any such decision, the Chancellor shall give the person affected thereby reasonable opportunity of being heard.

23.

Validity and protection of acts.

(1)

No act or proceeding of any authority or body of the University shall be invalid by reason of the existence of any vacancy among its members or by reason of some person having taken part in the proceedings who is subsequently found to have been not entitled to do so.

(2)

Save as otherwise provided in this Act, all the acts done or orders made in good faith by the University or any of its authorities shall be final and no suit shall be instituted against or damages claimed from the University or its authority for anything done or purported to have been done in pursuance of this Act or the Statutes or the Regulations.

(3)

No suits or other legal proceedings shall lie against any officer or other employee of the University in respect of anything which is done in good faith or intended to be done in pursuance of this Act or any Statutes made thereunder.

Chapter - IV Officers of the University

24.

Officers of the university.

- The following shall be the Officers of the University, namely:-

(i)

The Chancellor;

(ii)

The Vice-Chancellor;

(iii)

The Deans of faculties including Post-Graduate Studies;

(iv)

The Directors;

(v)

The Dean of Students Affairs;

(vi)

The Registrar;

(vii)

The Comptroller;

(viii)

The Controller of Examinations;

(ix)

The Estate Officer;

(x)

The University Librarian;

(xi)

Such other persons in the service of the University as may be declared by the statutes to be the officers of the University.

25.

Chancellor.

- The Governor of [Telangana]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

shall be the Chancellor of the University. He shall, by virtue of his office, be the Head of the University and shall, when present, preside at any convocation of the University. He shall exercise such other powers as may be conferred on him by or under this Act.

26.

Vice-Chancellor.

(1)

The Vice-Chancellor shall be a whole time officer of the University and shall be appointed by the Chancellor from the panel of eminent scientists in Horticulture/ Agriculture drawn by the Search Committee. The Search Committee shall consist of the following persons:

(i)

One nominee of Chancellor;

(ii)

One nominee of the State Government;

(iii)

Director General, Indian Council of Agricultural Research or his nominee.

(2)

The Vice-Chancellor shall hold office for a term of three years. The emoluments, inclusive of pension, if any, and other conditions of the service of the Vice-Chancellor shall be such as may be prescribed by UGC/ICAR and shall not be varied to his disadvantage after his appointment.

(3)

The Vice-Chancellor may relinquish his office by resignation in writing under his hand addressed to the Chancellor which shall be delivered to the Chancellor normally 60 days prior to the date on which the Vice-Chancellor wishes to be relieved from his office, but the Chancellor may relieve him earlier.

(4)

Where the post of the Vice-Chancellor falls, permanently vacant either by resignation or otherwise, the vacancy shall be filled by the Chancellor in accordance with the provisions of sub-section (1) and the Vice-Chancellor so appointed shall hold office for a full term of five years.

(5)

In the temporary absence of the Vice-Chancellor on leave, for whatever reason, or until the vacancy caused in any other manner is filled, the Chancellor shall appoint any person temporarily to act as Vice-Chancellor.

(6)

The Vice-Chancellor shall not be removed from his office except by an order of the Chancellor passed on the ground of misbehaviour or incapacity or if it appears to the Chancellor that the continuance of the Vice-Chancellor in office is detrimental to the interests of the University, after due inquiry by such person who is or has been a Judge of High Court to be nominated by the Chancellor in which the Vice-Chancellor shall have an opportunity of making his representation.

27.

First Vice-Chancellor.

- The first Vice-Chancellor shall be appointed by the Chancellor. He shall be paid the salary, as prescribed from time to time, inclusive of pension, if any. He shall serve the University for full term as may be prescribed. The conditions of the service shall be as may be prescribed, from time to time, but shall not vary to his disadvantage after his appointment. The other conditions of service shall apply as may be prescribed for a regular officer:

[Provided that the Government may appoint the Vice-Chancellor temporarily till the first Vice-Chancellor is appointed by the Chancellor.]

[Added by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

28.

Powers and Duties of the Vice-Chancellor.

(1)

The Vice-Chancellor shall be the academic head and Principal Executive Officer of the University and ex-officio Chairman of the Board, Academic Council, Research and Extension Council and shall, in the absence of the Chancellor, preside at the convocation of the University and confer degrees on persons entitled to receive them.

(2)

The Vice-Chancellor shall exercise general control over the affairs of the University and shall be responsible for due maintenance of discipline in the University.

(3)

The Vice-Chancellor shall convene meetings of the Board, Academic Council, Research and Extension Council.

(4)

The Vice-Chancellor shall ensure faithful observance of the provisions of this Act, Statutes and Regulations and he shall exercise all powers necessary for this purpose.

(5)

The Vice-Chancellor shall be responsible for the presentation of the annual financial estimates and the annual accounts to the Board of Management.

(6)

The Vice-Chancellor may take any action in any emergency which in his opinion calls for immediate action. He shall in such case and as soon as may be thereafter, report his action to the authority which will ordinarily have dealt with the matter. If the authority disagrees with the action of the Vice-Chancellor, the matter shall be referred to the Chancellor whose decision shall be final.

(7)

Where any action taken by the Vice-Chancellor under sub-section (6) affects any person in the service of the University to his disadvantage such person may prefer an appeal to the Board within thirty days from the date on which such person has been served with a notice of the action taken.

(8)

The Vice-Chancellor shall give effect to the decisions of the authorities of the University taken in accordance with the powers conferred by or under this Act.

(9)

The Vice-Chancellor shall be responsible for the proper administration of the affairs of the University and for a close coordination and integration of teaching, research and extension.

(10)

The Vice-Chancellor shall exercise such other powers and perform such other duties as are conferred or imposed upon him under the provisions of this Act and as may be prescribed from time to time.

29.

Deans of the Faculties.

- There shall be a Dean for each Faculty who shall be the Chairman of the Faculty Board and shall be responsible for the faithful observance of the provisions of the Act, Statutes and Regulations relating to the faculty and for the organization and conduct of the teaching, research and extension work of the departments comprised therein.

30.

Director of Research.

- There shall be a Director of Research who shall be responsible for the direction and coordination of research programmes of horticulture and allied sciences in the University as laid down in section 41 and efficient working of research stations.

31.

Director of Extension.

- There shall be a Director of Extension who shall be responsible for the Extension Programmes as laid down in section 42.

32.

Director of Industrial and International Programmes.

- There shall be a Director of Industrial and International programmes, who shall be responsible for coordination of programmes with industries in relation to the board objectives of the University and coordinate the International programmes concerning the University.

33.

Dean of Students' Affairs.

- The Dean shall have the following duties:

(1)

to make arrangements for housing of students and supervise management of students' hostel, cafeteria, mess etc.,

(2)

to plan and organize students' extra-curricular activities such as sports, cultural and, other recreational activities, NCC, NSS and other allied activities of the University;

(3)

may make arrangements for the employment of students with the approval of the Vice-Chancellor;

(4)

to plan and direct the programme of students advisement and counselling and to enlist the co-operation of prospective employers and employment agencies to assist in the placement of graduates of the University and to promote discipline amongst the students of the University;

(5)

to supervise and control medical and health services and other welfare measures of the students in the University;

(6)

to make arrangement for scholarships, stipends, part-time employments and travel facilities for the study tour of the students;

(7)

to organize and maintain contact with the alumni of the University;

(8)

such other functions, as may be prescribed.

34.

Registrar.

(1)

The Registrar shall be responsible for the due custody of records and the common seal of the university. He shall be the Ex-officio Non-Member Secretary of the Board and the Ex-officio Member-Secretary of the Academic Council and shall be bound to place before it all such information as may be necessary for the transaction of its business. He shall receive applications for entrance to the University and shall keep a permanent record of all courses, curricula and other information as may be necessary.

(2)

The Registrar shall be responsible for maintaining permanent records of the Academic Council, performance of the students of the University including the courses taken, credits obtained, degrees, prizes or other distinctions and other items pertaining to the academic performance and discipline of the students.

(3)

The Registrar shall be responsible for the conduct of the examinations and for the due execution of all processes connected therewith.

(4)

The Registrar shall be responsible for establishment matters and general administration in the University, as prescribed.

(5)

The salary and allowances payable to the Registrar and the conditions of service shall be such as may be prescribed: Provided that the conditions of service of the Registrar shall not be varied to his disadvantage after his appointment.

(6)

The Registrar may, by writing under his hand addressed to the Board, resign his office. The resignation shall be delivered to the Board ordinarily sixty days prior to the date on which the Registrar wishes to be relieved of his office, but the Board may relieve him earlier. The resignation shall take effect from the date of relief.

35.

Comptroller.

(1)

The Comptroller shall be responsible for preparation of the budget and statement of accounts of the University for presentation by the Vice-Chancellor, for approval of the Board. He shall manage the funds and investments of the University. He shall be responsible for ensuring that expenditure is made as authorized.

(2)

The Comptroller shall arrange periodical internal inspection of the accounts maintained in the various units of the

University.

(3)

The Comptroller shall be responsible for the maintenance of the accounts of the University in the form and manner as approved by the Board and constantly monitor the state of cash and bank balance and the state of investment.

(4)

The Comptroller shall manage the property and the investments of the University and tender advice in regard to its financial policy.

(5)

The Comptroller shall see that the register of buildings, furniture, equipments and other items, are maintained up-to-date and arrange for the stock checking of all items in all offices and units of the University.

36.

Controller of Examinations.

- The Controller of Examinations shall,-

(1)

assist the Registrar and co-ordinate for admission of students in different courses of study;

(2)

assist the University Officers in preparation of Academic calendar;

(3)

coordinate the conducting of examinations in the University;

(4)

check the grade point of the students in their examinations and forward the same for approval of the Deans of the Faculty and the Registrar;

(5)

issue necessary certificates to the students of their result in examinations;

(6)

co-ordinate in awarding diplomas and prizes to the students at the annual Convocation.

37.

Estate Officer.

- The Estate Officer shall be responsible for execution of civil works and maintenance of the Buildings, all civic amenities, roads fencing, play grounds, parks and lands of the University other than the land comprising the horticultural and other farms and such other functions as may be prescribed.

38.

University Librarian.

- The University Librarian shall be responsible for the maintenance and management of the University Library and to guide and coordinate the working in the libraries of the various constituent units of the University and to prepare the annual estimate of operational and developmental requirements of all the libraries of the University.

39.

Common to the Officers other than Chancellor and Vice-Chancellor.

(1)

The Officers of the University referred to in clauses (iii) to (xi) of section 24 shall be appointed by the Vice-Chancellor with the approval of the Board of Management on such terms and conditions and in the manner, as may be prescribed: Provided that the Vice-Chancellor may make appointments of such officers as a temporary measure for a period of six months under intimation to the concerned authority of the University.

(2)

The salary and allowances payable to and conditions of service of the officers in sub-section (1) shall be such as may be prescribed:

Provided that the emoluments and the conditions of service of the officers shall not be varied to their disadvantage after their appointment.

(3)

The Officers of the University as referred to in subsection (1) shall be whole time officers and shall be responsible to the Vice-Chancellor for the organization and implementation of the programmes concerning to them.

(4)

No officer shall accept any remuneration from any source other than the remuneration to which he is entitled under the Statutes.

(5)

Subject to the provisions of this Act, the Officers of the University referred to in clauses (iii) to (xi) of section 24 shall perform such other duties as may be prescribed or as may be assigned to them, from time to time, by the Board or the Vice-Chancellor.

Chapter - V Teaching, Research and Extension

40.

Teaching.

(1)

Subject to the provisions of this Act, teaching in the University shall include Bachelor's, Master's and Doctoral Degree Programme and short-term Diploma Courses in the disciplines of Horticulture/Agriculture, Forestry and other allied sciences, as may be prescribed.

(2)

Teaching programmes may be based on modern system of "Horticultural Education" with the objective of producing competent and practical oriented graduates and post graduates to handle production, management, research, extension and teaching work.

(3)

The existing colleges and teaching units along with the facilities and the budgets in the field of Horticulture etc., in the Government Departments shall be transferred to the University with effect from such date as the Government may notify.

41.

Research.

(1)

The University may establish and maintain one or more Horticultural/Agricultural Experiment Stations for research, both fundamental and applied in all Faculties, in addition to the maintenance of institutions which stand transferred to the University.

(2)

Subject to the provisions of this Act, research programmes in the University shall carry on research (fundamental as well as applied) on the problems in the fields of Horticulture and other allied sciences for the purpose of aiding the development of "Horticulture" and for the benefit of rural population in the State.

(3)

The University through its research organization shall be the principal agency of control over research activities in Horticulture and other allied branches in the State.

(4)

The existing research organization and experimental stations along with the facilities and budget in the field of Horticulture and allied branches in the Government Departments shall be transferred to the University with effect from such date as the Government may notify.

(5)

The University may establish Regional/Zonal Research Stations and sub-stations in different agro-climatic zones of the State for the conduct of research including operational research.

(6)

The University may, at any time, with the approval of the Government close down, either permanently or temporarily any of the Experiment Stations specified in subsection (1).

42.

Extension.

(1)

There shall be established Extension programmes/ activities in the University and shall, subject to the provisions of this Act and Statutes, make useful information available to farmers and others based upon findings of research to help and solve their problems. It shall conduct demonstrations and training programmes and undertake advisory work for the

benefit of students, extension workers and farmers. Extension activity of the University shall be coordinated with the other functions of the University and other appropriate agencies of the State.

(2)

The University shall be responsible for the Extension activities as may be necessary to inform and demonstrate to the farmers the findings of research on improved practices essential to improve rural living and to increase production with special emphasis on food production and utilization. In order that the University may conduct such activities, the State shall transfer to the University the necessary personnel, facilities and funds in accordance with a plan to be developed and mutually agreed upon by the University and the Government.

43.

Co-ordination of Teaching, Research and Extension, Integration of Functions and Curricula and Services.

(1)

The Vice-Chancellor shall take such steps as may be necessary in consultation with the appropriate officers of the University, for the full co-ordination of teaching, research and extension activities of the University.

(2)

The Vice-Chancellor shall ensure working through the appropriate officers and staff of the University to see that there is an appropriate inter-relation in the different curricula and courses offered in the different Faculties of the University so as to avoid unnecessary duplication of functions between faculties of the University and provide the students with the best course offerings and faculty contacts feasible within the University's resources and talents.

(3)

The University shall develop its programme of research and extension activities keeping in view the needs of the State and provide the appropriate technical support and consultative advice to the Government departments engaged in the development work in Horticulture and other allied branches.

44.

Co-ordination among Government Departments and University.

- The Government shall endeavor to secure proper coordination between the Departments of the Government and the University of the University's activities and may tender necessary advice to the Board in that regard.

Chapter - VI Appointment of Teachers

45.

Appointment of Teachers.

- The teachers of a Faculty shall be appointed by the Board on the recommendation of the Selection Committee in the manner prescribed and their remuneration and other conditions of service shall be such as may be prescribed.

46.

Provident Fund, Pension, Insurance and Welfare Fund.

(1)

The University shall constitute for the benefit of its officers, teachers, ministerial staff and other employees, in such manner and subject to such conditions as may be prescribed, such pension, gratuity, insurance, provident fund as it may deem fit:

Provided that the University shall have power in consultation with the Finance Committee, to invest the Provident Fund amount in such manner as it may determine.

(2)

For such pension, gratuity, insurance and provident fund so constituted by the University, the Government may declare that the provisions of the Provident Fund Act shall apply to such funds as if it were a Government provident fund.

(3)

The University, in addition, may constitute welfare funds for the benefit of its employees and students.

47.

Tribunal of Arbitration for disputes between the University and its staff.

- Any dispute arising out of a contract between the University and any employee of the University shall, on the request of the employee concerned or at the instance of the Board, be referred to a Tribunal of Arbitration consisting of one member nominated by the Board, one member nominated by the employee concerned and an umpire appointed by the Government. The decision of the Tribunal shall be final.

Chapter - VII Funds and Accounts

48.

University Funds.

(1)

The University shall have a General Fund to which shall be credited:

(i)

its income from fees, endowments and grants and income from properties of the University including hostel, experimental stations and farms;

(ii)

contribution and grants made by the Government on such conditions as are consistent with the provisions of this Act;

(iii)

other contributions, grants, donations, benefactions and loans and other receipts.

(2)

The University shall form a fund called the Foundation Fund from contributions and grants made by the Central Government or the State Government or approved agency for being credited to that fund and such other sums as may be specified by the Board, shall be credited to this fund. The Board may, as and when necessary, retransfer such amount as may be specified, from the Foundation Fund to the General Fund, in the manner prescribed.

(3)

The University shall furnish statements of accounts, reports and other particulars to the Government relating to any grant made by the Government and shall take such action and furnish such statements, accounts, reports and other particulars relating to the utilization of any grant within such time and manner as the Government may direct.

(4)

It shall be competent for the University in furtherance of its objectives to accept the grants from the Government or any other State Government or the Central Government or Statutory Bodies or endowments or donations under such conditions as may be agreed upon between the University and the grantor or donor.

(5)

The University may have such other funds and shall maintain such accounts in respect of every fund as may be prescribed.

49.

Borrowing of Money.

- The University may accept moneys from the Government of India, Indian Council of Agricultural Research, the State Government, the University Grants Commission and also borrow money from a Bank or a corporation for the purpose of the University:

Provided that where the University intends to borrow money from a Bank or a Corporation or both exceeding an amount of fifty lakhs of rupees at a time or in the aggregate, it shall obtain the prior written approval of the Government thereof.

50.

Certain restrictions in respect of financial matters.

- The University shall not divert earmarked funds for other purpose, or revise the scales of pay of its staff or implement any scheme which involves any matching contribution from the Government or which imposes a recurring liability on the Government after the assistance from the sponsoring authority ceases without the prior written approval of the Government:

Provided that this section does not apply to exigencies where the University meets the expenditure within the approved budget or in respect of schemes or programmes fully financed (100%) by other agencies /Government for specified periods:

Provided further that the Finance Committee may authorize the creation and filling up of posts of teachers for a period not exceeding two years, but any such post shall not be continued or created afresh for any period beyond the said period of two years without the prior written approval of the Government.

51.

Finance Committee.

(1)

The Board shall constitute a Finance Committee consisting of:-

(i)

The Vice-Chancellor (Ex-officio Chairman);

(ii)

The Secretary to Government, Finance Department who is member of the Board;

(iii)

One person from among the faculty Deans to be nominated by the Vice-Chancellor;

(iv)

One person from among the Directors to be nominated by the Vice-Chancellor;

(v)

One Member who should be the Non-officials, nominated from among the Board;

(vi)

Comptroller shall be the Ex-officio Member- Secretary of the Committee.

(2)

Finance Committee shall have the following functions, namely:-

(i)

to examine the annual accounts and budget estimates of the University and to advise the Board thereon;

(ii)

to review the financial position of the University at least once in six months and as may be necessary;

(iii)

to make recommendations to the Board on all matters relating to the finances of the University.

52.

Accounts and Audit.

- The Annual Statement of Accounts of the University shall be prepared by the Comptroller and certified by an authority to be nominated or authorized by the Government. The Statement shall include all the money accruing to or received by the University. Such statement shall be printed and submitted to the Government by the Board after close of the financial year to which these pertain.

53.

Government Grants.

- The Government shall every year make the following lumpsum grants to the University, namely:-

(i)

A grant not less than the expenditure incurred in the State on such of the activities of the Institutions of Horticulture and other Government Departments as are transferred to the University;

(ii)

A grant not less than the estimated net expenditure of pay and allowances of the staff, contingencies, supplies and services of the University other than the activities in various organizations referred to above in clause (i);

(iii)

A grant to meet such additional items of expenditure, recurring and non-recurring, as the Government deems necessary for the proper functioning of the University;

(iv)

The State Government shall also make nonlapsable lumpsum grant to the University in respect to schemes included in every Five Year Plan and transferred to it for implementation by the University of an amount equal to the net outlay in the annual plan. Adjustments may be made for the anticipated assistance from the Central Government and other agencies sponsoring such schemes, provided such assistance may come to the University directly.

Chapter - VIII Statutes and Regulations

54.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

(a)

the constitution, powers and duties of the Authorities;

(b)

designations, powers, functions, duties manner of appointment and selection and terms and conditions of service of the officers other than Chancellor and Vice-Chancellor;

(c)

terms and conditions of service of the Vice-Chancellor;

(d)

classification and manner of appointment, terms and conditions of service, remuneration and allowances including traveling and daily allowances of teachers and non-teaching staff of the University;

(e)

the establishment, amalgamation, sub-division and abolition of Faculties/Colleges/Research Stations;

(f)

the constitution of pension, insurance, provident fund etc;

(g)

all other matters necessary for carrying out all or any of the purposes of the Act.

55.

Statutes how made.

(1)

The statutes with regard to matters set out in section 54 shall be made by the Government.

(2)

Subject to the prior approval of the Government, the Board may amend or repeal any statute.

(3)

The Academic Council, Research and Extension Council, as the case may be, may propose to the Board the draft of any statute to be made by the Board and such draft shall be considered by the Board at its next meeting:

Provided that the Academic Council, Research and Extension Council as the case may be, shall not propose the draft of any such statute, any amendment of a statute or repeal of a statute affecting the stature, powers and constitution of any existing authority until such Authority has been given an opportunity to express its views on such proposal and any views so expressed shall be considered by the Board.

(4)

The Board may consider any such draft as is referred to in sub-section (3) and make the statute or reject or return it to the Academic Council, Research and Extension Council, as the case may be, for reconsideration, either in whole or part, together with any amendments which it may suggest.

(5)

Any member of the Board may propose to it the draft of any amendment of a Statute or repeal of a statute and the Board may either accept or reject the proposal if it relates to a matter not falling within the purview of the Academic Council, Research and Extension Council, as the case may be. In case such draft relates to a matter within the purview of Academic Council, Research and Extension Council, as the case may be, the Board shall refer it for consideration to the Academic Council, Research and Extension Council, as the case may be, which may either report to the Board that it does not approve the proposal, which shall then be deemed to have been rejected by the Board or forward such draft to the Board in such form as the Academic Council Research and Extension Council as the case may be, may approve, and the provisions of this section shall apply in the case of a draft so forwarded as they apply in the case of a draft proposed to the Board by the Academic Council, Research and Extension Council, as the case may be.

(6)

Every statute made under sub-section (1) shall, immediately after it is made, be laid before the both Houses of State Legislature if it is in session and if it is not in session in the session immediately following, for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, the House agrees in making, any modification in the statute or in the annulment of the statute, the statute shall thereafter have effect only in such modified form or shall stand annulled, as the case may be, so, however that any such modification or annulment shall be without prejudice to the validity of anything previously done under the statute.

56.

Regulations.

(1)

The Authorities of the University may make regulations consistent with this Act and the Statutes for laying down the procedure for their meetings and the number of members required to form the quorum,-

(a)
providing the matters which under the Act and Statutes are to be regulated by the Regulations;

(b)
providing for any other matter solely concerning the authority and not providing for by this Act and Statutes.

(2)
The Academic Council may, subject to the provisions of this Act and the Statutes, make regulations providing for courses of study, system of examination, academic calendar, award of degrees and diplomas of the University and other matters related to instruction.

(3)
The regulations made by any authority of the University shall be subject to such direction as the Board may, from time to time, give in this behalf.

(4)
The Board of Management may make Regulations for,-

(i)
the procedure at meetings of Authorities including the quorum for the transaction of business by them;

(ii)
the holding of convocations to confer degrees and diplomas;

(iii)
the conferment and withdrawal of honorary degrees and other distinctions;

(iv)
the establishment, amalgamation and abolition of departments/ divisions of teaching in the Faculties/Colleges;

(v)
the establishment and abolition of hostels maintained by the University on the recommendation of Academic Council;

(vi)
the institution and withdrawal of fellowships, scholarships, studentships, bursaries, medals and prizes and the conditions of award thereof, on recommendation of the Academic Council;

(vii)
remunerations and allowances including travelling and daily allowances to be paid to officers, teachers and other persons employed under the University;

(viii)
the conditions under which students shall be admitted to the degree, diploma or other courses and to the examinations of the University and the conditions for the award and withdrawal of degrees and diplomas, on the recommendation of the Academic Council;

(ix)
the conditions of residence of the students of the University and the levying of fees for residence in hostels maintained by the University;

(x)
the fees which may be charged by the University connected therewith;

(xi)
any other matter connected with the management of University.

(5)
The Academic Council may make regulations for,-

(i)
the establishment and abolition of hostels maintained by the University;

(ii)
the institution of fellowships, scholarships stipend, bursaries, medals and prizes and the conditions of award thereof;

(iii)
the entrance or admission of the students to the University and their enrollment and continuance as such and the conditions and procedures for dropping students from enrollment;

(iv)
the fees which may be charged by the University;

- (v)
the courses of study to be laid down for all degrees, diplomas and certificates of the University;
- (vi)
the conditions under which students shall be admitted to the degrees, diplomas or other courses and examinations of the University and their eligibility for the award of degrees and diplomas;
- (vii)
the conditions for conferment of degrees and other academic distinctions;
- (viii)
the maintenance of discipline among the students of the University;
- (ix)
the special arrangements, if any, which may be made for residence, discipline and teaching of women students and the provision of special courses of study for women;
- (x)
the conditions of residence of students of the University and the levy of fees for residence in hostels;
- (xi)
the recognition and management of hostels not maintained by the University;
- (xii)
the conditions and mode of appointment and the duties of examining bodies and examiners;
- (xiii)
the conduct of examinations;
- (xiv)
any other matter connected with the academic affairs of the University.

(6)
The Research and Extension Council may make regulations for,-

- (i)
constitution of zonal councils and working groups for various related disciplines in research stations and extension centres;
- (ii)
monitoring and evaluation of research and extension programmes;
- (iii)
functioning of different research and extension programmes;
- (iv)
integration of research, extension and teaching;
- (v)
training programmes for various functionaries involved in horticultural development;
- (vi)
conferring distinctions and awarding prizes to the farmers and others who contributed for the development of horticulture;
- (vii)
any other purpose envisaged in the objects of the University relating to research and extension.

Chapter - IX Miscellaneous

57.

Residence of Students.

- The students shall reside in the accommodation maintained by the University or approved by the Vice-Chancellor subject to the conditions as may be prescribed. However the Vice-Chancellor or an authorized officer of the University may permit the student(s) to reside with their parents or in private accommodation for valid reason.

58.

Annual Report.

- The Annual report of the University shall be prepared by the Registrar (or any other officer, if assigned) under the direction of the Vice-Chancellor normally within six months from the close of the Financial Year and circulated to the members of the Board one month before meeting at which it is to be considered. The Board shall after consideration of

the annual report forward a copy thereof to the Government.

59.

Temporary Appointment of officers and constitution of Committees.

- Notwithstanding anything in this Act, and until such time as the authorities are duly constituted, the Vice- Chancellor may appoint any officer or constitute any Committee temporarily to exercise, perform and discharge all or any of the powers, functions and duties of such Authorities under the Act. The Vice-Chancellor shall report the matter to the appropriate authority, which normally deals with the matter, when it is constituted.

60.

Powers of Government to transfer certain colleges and institutions to the University.

- [(1) With effect on and from the appointed date, all colleges situated in Telangana State and admitted to the privileges of Dr.Y.S.R. Horticultural University, Venkataramannagudem, West Godavari District shall be deemed to have admitted to the privileges of the University.

(2)

Notwithstanding anything in Dr.Y.S.R. Horticultural University, Act (Act

No. 30 of 2007

), all colleges and institutions affiliated to Dr.Y.S.R.Horticultural University and located in Telangana State shall, on and from the appointed day i.e. 23.12.2014 be dis-affiliated from the said University and thereupon they shall be deemed to have been affiliated to the University.

(3)

Notwithstanding the dis-affiliation of the colleges under sub-section (1) from Dr.Y.S.R. Horticultural University may request Dr.Y.S.R. Horticultural University for the conduct of examinations and the declarations of results so far as they relate to the current academic year and it may also request for necessary action in the interest of students to meet any contingency that might arise, as a result of the dis-affiliation under sub-section (1).]

[Sub-section (1) substituted by sub-sections (1) to (3) of section 60 by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

(4)

[]

[The existing sub-sections (2) to (7) of section 60 are renumbered as sub-sections (4) to (9) by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

Notwithstanding anything in the [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

Act, 1963 or the statutes made thereunder, the colleges and institutions relating to horticulture and other allied subjects, specifically indicated in the notification, shall, as from the date notified in the [Telangana]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

Gazette by the Government in this behalf, shall be disaffiliated of that University.

(5)

The control and management of the colleges and institutions specified in sub-sections (1) and (2) shall, as from the date notified by the Government, stand transferred to the University and all the properties and assets and liabilities and obligations of the Government and [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

in relation thereto shall stand transferred to, vest in, or devolve upon, the University.

(6)

The compensation payable by the University to 18[Professor Jayashankar Telangana State Agricultural University] in respect of the transfer and vesting of the properties and assets and the devolution of liabilities and obligations shall be such, as may be agreed upon between the two Universities. In default of such agreement, the compensation shall be determined by the Government, after giving opportunity to the two Universities of making their representations in that regard, and the decision of the Government in the matter shall be final.

(7)

Notwithstanding anything in this Act, where the control and management of any college or institution has been transferred to the University under sub-section (3) the University shall employ all teachers and other employees of the Government or the [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

, as the case may be, who immediately before the date notified by the Government under the above sub-section were serving in or were attached to those institutions, on such foreign service conditions as may be determined by the Government in the case of a Government employee or by the [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

in the case of an employee of that University:

Provided that no deputation or any other allowance shall be payable to any such employee.

(8)

Notwithstanding anything in sub-section (5), every such teacher or other employee of the Government or [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

, as the case may be, shall within a period of two years exercise his/her option to revert to the service under the Government or [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

, as the case may be, to which he belongs, failing which he shall be deemed to have been absorbed in the service of the University with effect from the date notified by the Government under sub-sections (1) and (2) and shall from the said date, be governed by the terms and conditions governing the said service:

Provided that any employee wants to remain in the former service can revert to that service. Such exercise shall complete within two years of the commencement of the Act:

Provided further that-

(i)

the terms and conditions offered by the University to such teachers and other employees consequent on their absorption in the service of the University shall not be less favourable than those applicable to such teachers and other employees, immediately before the date notified by the Government under sub-sections (1) and (2), as respects remuneration, leave, pension, gratuity, provident fund etc.;

(ii)

the service rendered by any such teacher or other employee under the Government or [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

, as the case may be, up to the date notified as aforesaid shall be deemed to be in service under the University and he shall be entitled to count that service for the purpose of increments, leave, pension or provident fund, gratuity etc:

Provided also that the employees of the Government/ [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

who are working in the related Agricultural/ Horticultural institutions may also be provided with an opportunity of exercising their option to serve in the University, with the same conditions as provided in subsection and such option shall be called through a notification within three months from the date of completion of the notification indicated in this sub-section.

(9)

Notwithstanding anything in this Act or the Statutes made thereunder, any student of the University College who was studying for any examination of [Professor Jayashankar Telangana State Agricultural University]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

shall be permitted to complete his course in preparation therefor and the University shall make arrangements for holding for such students examinations for such period as may be prescribed, in accordance with curricula of studies of [Professor Jayashankar Telangana State Agricultural University.]

[Substituted by G.O.Ms.No.31, Agriculture and Cooperation (Horti & Seri) Department, dated 22.12.2014.]

61.

Delegation of Powers.

- The Board may, by Statutes made in this behalf delegate to any officer or authority of the University any of the powers conferred on it, by or under this Act, to be exercised by such officer or authority, subject to such restrictions and conditions as may be specified in such Statutes.

62.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Government may, by order, do anything which appears to it necessary for the purpose of removing the difficulty.

(2)

No order made under sub-section (1) shall be questioned in any court of law on the ground that no difficulty as is referred to in the said sub-section, existed to be removed.

63.

Repeal of Ordinance 8 of 2007.

- The Andhra Pradesh Horticultural University Ordinance, 2007 is hereby repealed.

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